

24STLC09091 24STLC09091

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC09091 Hearing Date: July 21, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Geico Casualty Company's (1) Motion to Compel Responses to Form Interrogatories; Request for Monetary Sanctions, is granted in part and denied in part. Defendant Juan Carlos Vallecillo is to serve verified responses without objections to the Form Interrogatories, Set One, within 20 days' service of this order. Plaintiff's request for sanctions is denied.

Plaintiff Geico Casualty Company's Motion to Deem Requests for Admission Admitted; Request for Sanctions, is granted. Defendant Juan Carlos Vallecillo is ordered to pay sanctions of \$285.00 to Plaintiff's counsel within 20 days' notice of this ruling.

Analysis:

Plaintiff Geico Casualty Company ("Plaintiff") propounded Form Interrogatories, Set One, and Requests for Admission, Set One, on Defendant Juan Carlos Vallecillo ("Defendant") on April 2, 2026. (Motions, Tapper Decl., ¶2 and Exh. A.) Defendant has not served responses to the discovery as of the June 12, 2026 filing of the instant (1) Motion to Compel Responses to Form Interrogatories; Request for Sanctions; and (2) Motion to Deem Requests for Admission Admitted; Request for Sanctions. (Id. at ¶3.)

Based on Defendant's failure to serve initial responses to the discovery, the Motions to compel responses and to deem admissions admitted, are granted. There is no requirement for a prior meet and confer effort before a motion to compel initial responses or deem admissions admitted can be filed. (Code Civ. Proc., §§ 2030.290, 2033.280.) Furthermore, the Motions can be brought at any time after the responding party fails to provide responses. (Code Civ. Proc., §§ 2030.290, 2033.280.) Therefore, Plaintiff is entitled to an order compelling Defendant to serve verified responses to the interrogatories. (Code Civ. Proc., § 2030.290.) Plaintiff is also entitled to an order deeming the requests for admission admitted. (Code Civ. Proc., § 2033.280.)

On a motion to deem requests for admission admitted, the Court is required to award sanctions under section 2033.280. (Code Civ. Proc., § 2033.280, subd. (c).) While properly noticed, the sanctions sought are excessive for an unopposed motion to deem requests for admission admitted and for which Plaintiff's counsel can appear telephonically. (Motion, Tapper Decl., ¶4.) Therefore, sanctions are granted against Plaintiff in the amount of \$285.00 based on one hour of attorney time billed at \$225.00 per hour, plus the \$60.00 filing fee. (Id. at ¶¶5-6.)

Defendant requests sanctions for the Motion to Compel Responses to Form Interrogatories, Set One, pursuant to Code of Civil Procedure section 2030.290, under which the Court shall impose a monetary sanction against any party, person, or

attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code Civ. Proc., § 2030.290, subd. (c), emphasis added.) Defendant did not make or oppose the instant Motion to Compel Responses. Therefore, sanctions are not available under section 2030.290.

Conclusion

Plaintiff Geico Casualty Company's (1) Motion to Compel Responses to Form Interrogatories; Request for Monetary Sanctions, is granted in part and denied in part. Defendant Juan Carlos Vallecillo is to serve verified responses without objections to the Form Interrogatories, Set One, within 20 days' service of this order. Plaintiff's request for sanctions is denied.

Plaintiff Geico Casualty Company's Motion to Deem Requests

for Admission Admitted; Request for Sanctions, is granted. Defendant Juan

Carlos Vallecillo is ordered to pay sanctions of \$285.00 to Plaintiff's counsel

within 20 days' notice of this ruling.

Moving Party to give notice.